

assessment of inventive step. Going into details, the board concluded that the subject-matter of claim 1 of the main and the first auxiliary requests was not acceptable under Art. 123(2) EPC 1973 (see also T 761/08).

In T 660/14 claim 1 of auxiliary request 4 contained two additional features according to which the operating and control members of the claimed bicycle control device were pivotable about non-common offset axes and were not pivotable commonly about either of the offset axes. The board, applying the criterion of G 1/03 (OJ 2004, 413) as interpreted by G 1/16 (OJ 2018, A70), considered that the disclaimers provided a technical contribution to the subject-matter disclosed. Claims 7 and 8 as filed addressed the operating member and the control member being arranged to be pivotable about parallel and/or offset axes. As indicated in the description, this may be seen as providing ergonomic advantages. The board concluded from this that the disclaimers introduced a technical difference to the amended claim when compared to the content of the original application. The pivotable arrangement of the operating and control members about the axes was of a technical nature, not least through the disclosure of the ergonomic benefits; the board concluded the disclaiming of this arrangement would have to be as well. The board held that this finding was furthermore confirmed by considering whether merely a quantitative change to the original technical teaching had occurred or indeed whether a qualitative change had resulted from the introduction of the undisclosed disclaimers (G 1/16). By disclaiming both common offset axes and common pivoting about either of the offset axes, the ergonomic considerations identified in the application as filed had been modified, resulting in a **qualitative change** to the originally disclosed technical teaching in the sense that the proprietor's position with regard to inventive step would be changed. See also T 2000/14, in which the board also found that the disclaimer led to a qualitative change to the originally disclosed technical teaching.

In T 437/14 of 12 March 2019, taking into account the answers to the questions on undisclosed disclaimers which it had referred to the Enlarged Board in case G 1/16 (OJ 2018, A70), the board considered that there was no evidence that the limitation of the genus of compounds covered by the formula in claim 1, which resulted from the excision of the seven specific compounds defined in the disclaimer, became relevant for establishing inventive step or sufficiency of disclosure.

In T 1984/15 the board pointed out that under decision G 1/03 a disclaimer that would be allowable solely on the basis of a conflicting application could not render the invention novel or inventive over state of the art under Art. 54(2) EPC. Since the new disclaimer in this case had, as asserted by the patent proprietor itself, rendered the subject-matter of the claim inventive over the closest prior art D10 (a document as per Art. 54(2) EPC), precisely that was the scenario here. The disclaimer was therefore an unallowable amendment under Art. 123(2) EPC.

g) Positive features – G 1/03 not applicable

In T 2502/13 the applicant sought to apply G 1/03 to a positive feature in order to restore novelty over a document under Art. 54(3) EPC. The board held, however, that G 1/03 did not apply in this situation.

h) Negative feature implicitly disclosed in original application – G 1/03 not applicable

In T 1525/15 the appellant's objection related to a negative feature (or disclaimer) of both independent claims ("free of a micro-embossing design"). The board observed that there was no verbatim disclosure of this feature in the original application. The feature was added during the grant proceedings to establish novelty over document D1, which was state of the art according to Art. 54(3) EPC. The board emphasised that such an amendment was allowable: (i) if the negative feature was implicitly disclosed as such in the original application; or (ii) if the disclaimer was undisclosed in the original application but complied with the requirements formulated in decision G 1/03 (OJ 2004, 413) of the Enlarged Board of Appeal. In the case in hand the board came to the conclusion that the negative feature was implicitly but nevertheless directly and unambiguously disclosed in the original application. As the negative feature was disclosed as such in the original application, it was not necessary to examine whether the conditions set out in decision G 1/03 (and confirmed in G 1/16, OJ 2018, A70) were fulfilled.

1.7.4 Decisions applying the criteria established by the Enlarged Board in G 2/10 – remaining subject-matter test

The board in T 1224/14 found that an amendment designed to exclude a specific value from a range described as particularly preferred in the application as filed did not meet the G 2/10 criteria for an allowable disclaimer.

In T 2130/11 the disclaimer in the third auxiliary request excluded a disclosed embodiment **from a generic class**. The board considered that the remaining subject-matter was still generic and could not be considered as a non-disclosed subgroup which had been singled out by means of the disclaimer, so that the remaining general teaching could not be seen as being modified by the disclaimer. Whether the invention worked for the claimed subject-matter and what problem was credibly solved by it were questions which were not relevant for assessing whether this subject-matter extended beyond the content of the application as filed. See however also T 1441/13 and T 1808/13 according to which it had to be established whether the subject-matter of the invention remaining in the claim was available at the filing date.

1.7.5 Applicability of the decisions of the Enlarged Board to cases already pending

The board in T 500/00 and T 740/98 ruled that the principle of good faith could not be invoked against the application of the principles concerning the allowability of disclaimers laid down in G 1/03 to pending cases (see also T 1045/09 and chapter III.A.6.1. "Case law deviating from or overruling the practice").

1.7.6 No analogy with G 1/03 where a disclaimer already in the application as filed is deleted

In T 2327/18 the respondent (patent proprietor) submitted that the disclaimer at issue had been included in the original application for legal reasons only (namely to establish novelty over an Art. 54(3) EPC document cited in relation to the parent application). The board

refused to draw the analogy with G 1/03 (OJ 2004, 413) which the appellant had sought to establish, holding that a disclaimer expressly disclosed in the application as filed as not forming part of the invention could not permissibly be deleted if that would mean that some of that "non-part" was claimed after all.

1.8. Generalisations

1.8.1 Replacing specific feature with more general term – no inclusion of undisclosed equivalents

With reference to T 416/86 (OJ 1989, 309), T 265/88 and T 118/89, the board in T 284/94 (OJ 1999, 464) confirmed that an amendment which replaced a disclosed specific feature either by its function or by a more general term and thus incorporated undisclosed equivalents into the content of the application as filed, was not allowable under Art. 123(2) EPC 1973.

In T 685/90 the board stated that specific equivalents of explicitly disclosed features did not automatically belong to the content of a European patent application as filed, when this content was used as state of the art according to Art. 54(3) and (4) EPC 1973 against a more recent application. It therefore concluded that such equivalents could not belong to the content of a European patent application either, when this content was assessed to determine whether an amendment was admissible under Art. 123(2) EPC 1973. See also T 946/13 and T 2087/17, citing T 685/90 and applying this principle in the context of Art. 87(1) EPC. On the prohibition of including equivalents, see also T 673/89.

In T 40/97 the board considered that in a case where a number of generally similar embodiments were discussed in equivalent terms, the person skilled in the art would, in normal circumstances and when nothing pointed to the contrary, notionally associate the characteristics of an element of one embodiment described in some detail with the comparable element of another embodiment described in lesser detail.

In T 653/03 the original term "diesel engine" in claim 1 was replaced by the term "combustion engine". The board decided that the treatment of exhaust gas in the original application was always related to a diesel engine, and it could not be inferred by the skilled person that the subject-matter of the granted patent extended to a method which was suitable for any type of combustion engine. The generalisation was not admissible.

In T 868/07 the board allowed the replacement of an undisclosed feature by a more general feature disclosed in both parent and divisional applications. The board found that the general feature had been disclosed in the same context in the description and in the figures of the parent application as filed; Art. 76(1) EPC had therefore been complied with. Since the more general feature was disclosed in the same context in the divisional application as filed, the board saw also no reason for an objection under Art. 123(2) EPC.

In T 2537/10 the board found that decision T 416/86, holding that replacing a disclosed special feature by a broad general expression was to be considered an unallowable amendment under Art. 123(2) EPC if that general expression implicitly combined special

features other than the disclosed one with the subject-matter of the application for the first time, was irrelevant since a specifically disclosed feature had not been replaced by its function. Instead, a general claim had been limited using a feature that the skilled person would, on the basis of common general knowledge in the art, directly and unambiguously derive from the originally filed version of the application.

1.8.2 Generalisation and claim category

In T.784/89 (OJ 1992, 438) the patent application as filed explicitly disclosed a computer-controlled method for producing a particular effect. By reference to another patent application an apparatus was implicitly disclosed comprising a programmable component which, when suitably programmed, was used for the claimed method. The board considered that only this specific combination had been disclosed. To claim an apparatus for carrying out that method was considered an inadmissible extension of the application because the claim covered apparatus which could also be used in other methods and to achieve other effects. The only allowable claim was for an apparatus for carrying out a method comprising a programmable component which could be suitably programmed to carry out the method.

1.8.3 No generalisation of an effect obtained for particular embodiments

In T.3/03 the board decided that an amendment consisting in the generalisation of an effect obtained for particular embodiments was not admissible. In the case in point, the results obtained for particular embodiments could not be generalised since the particular circumstances of use, including the type of additive used, determined whether or not filterability was improved.

1.8.4 Amendments to preamble of claim by substituting general term for specific term

According to T.52/82 (OJ 1983, 416), an amended claim does not contain subject-matter which extends beyond the content of the application as filed if the preamble to the claim has been amended by substituting an appropriate more general term, which is apt to define a feature common to both the closest prior art described in the application as filed and the invention which is the subject of the application, for a specific term which is not apt to define that feature of the prior art (see also T.285/07).

1.9. Intermediate generalisations

1.9.1 Principles

According to established case law (as summarised e.g., in T.219/09 or T.1944/10), it will normally not be allowable to base an amended claim on the extraction of isolated features from a set of features originally disclosed only in combination, e.g. a specific embodiment in the description or drawings of the original application (T.1067/97, T.714/00, T.25/03, T.2095/12, T.1365/16).

Amended subject-matter that amounts to a generalisation of a particular embodiment disclosed in the original application but is still more specific than the original definition of the invention in general terms is often called an "intermediate generalisation" (see e.g. [T 461/05](#), [T 191/04](#); see also [T 2311/10](#)) and sometimes an "intermediate restriction" (see [T 461/05](#), [T 879/09](#), [T 2537/10](#)). Other decisions understand "intermediate generalisation" to refer to an undisclosed – and thus unallowable – combination of selected features lying somewhere between an originally broad disclosure and a more limited specific disclosure ([T 1408/04](#)). An intermediate generalisation is different from a simple generalisation (as e.g. in [T 910/03](#), [T 404/03](#)), since in the former case a definition of the invention in general terms forms part of the original disclosure ([T 461/05](#)).

In [T 1238/08](#) the board observed that it would be contrary to the purpose of Art. 123(2) EPC to allow undisclosed intermediate generalisations only because the application as originally filed had not been drafted to contain appropriate fall-back positions.

An intermediate generalisation is justified only **in the absence of any clearly recognisable functional or structural relationship** among the features of the specific combination (see e.g. [T 1067/97](#), [T 25/03](#), [T 876/05](#), [T 1587/12](#), [T 1561/14](#), [T 2003/14](#), [T 879/18](#)) or if the extracted feature is **not inextricably linked with those features** (see e.g. [T 714/00](#), [T 2154/11](#), [T 2287/11](#), [T 775/17](#)). See also e.g. [T 1397/09](#), [T 2172/11](#), [T 2095/12](#), [T 2489/13](#), [T 2313/13](#), [T 1469/15](#), [T 152/16](#) and [T 1365/16](#), which refer to both criteria; see also the abstracts on [T 1500/07](#) and [T 500/11](#) below.

The board in [T 962/98](#) held that an intermediate generalisation was admissible only if the skilled person could recognise without any doubt from the application as filed that those characteristics were **not closely related** to the other characteristics of the working example and applied directly and unambiguously to the more general context (often cited, see e.g. [T 1144/08](#), [T 313/09](#), [T 879/09](#), [T 2185/10](#), [T 500/11](#), [T 2489/13](#), [T 1002/14](#), [T 978/15](#)). In other words, in order to be acceptable, this intermediate generalisation had to be the result of unambiguous information that a skilled person would draw from a review of the example and the content of the application as filed.

In [T 461/05](#) the board found that claim 4 as amended defined subject-matter which was less general than that defined by claim 1 in the original version but more general than the particular embodiment corresponding to case 2a as disclosed in the description and the subject-matter of claim 6 as originally filed. The amendment comprised the omission of certain characteristics of the combination of features of the particular embodiment. The board held that the provisions of Art. 123(2) EPC 1973 precluded such an amendment only where the amendment presented the skilled person with new information which did not follow directly and unambiguously from the application as originally filed. A restriction of a claim by adding a number of features from a particular embodiment originally disclosed did not in itself introduce such new information. By contrast, the omission of the remaining features of the embodiment would introduce new information if the **omitted features were necessary to carry out the particular embodiment** of the invention. In the case in hand, the board saw no reasons why these omitted features would be